

Pt. Krishna Dutt Munia Devi Siksha Prasar Samiti v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 July 2022 · WRIT - C No. 16201 of 2022 · **Writ disposed; clause 6.5 objection; coercive action stayed eight weeks**

HEADNOTE

A writ to quash a distribution-corporation demand notice and restrain recovery on a provisional assessment is disposed of without merits adjudication. The consumer may file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the corporation within four weeks; if filed, it is to be decided after hearing, preferably within four weeks. Coercive action is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner society sought certiorari against a demand notice dated 12 November 2021 issued by respondent no. 4, the power distribution corporation, and mandamus restraining recovery said to rest on a provisional assessment order dated 14 December 2021, with a direction that a superior authority decide its case finally. Counsel for the corporation stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-demand-writ-remitted-to-clause-6.5

HOLDING

Without expressing any opinion on merits, a writ to quash a demand notice and restrain recovery on a provisional assessment is disposed of with liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution corporation (respondent no. 4) within four weeks; if so submitted, the objection shall be decided in accordance with law, expeditiously, preferably within the next four weeks after hearing, and no coercive action shall be taken on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ against a demand notice and provisional-assessment recovery was disposed of by relegating the consumer to an objection under clause 6.5, without deciding the bill on merits. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The court treated Para 6.5 of the Supply Code as the forum for the consumer's objection to the impugned demand, to be decided after hearing within a time-bound period. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 12.11.2021 AND THE PROVISIONAL ASSESSMENT DATED 14.12.2021

The Court expressly declined to express any opinion on the merits. ¶ 1